

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Conor O'Shea	Team: Squad #06	CCRB Case #: 201901468	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/15/2019 3:29 PM	Location of Incident: 25th Precinct stationhouse	18 Mo. SOL 4/1/2021	Precinct: 25		
Date/Time CV Reported Mon, 02/18/2019 11:57 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 02/18/2019 11:57 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Garrett Taverna	18528	959289	025 PCT
2. POM Patrick Odonnell	27349	953193	025 PCT
3. POM Gregory Matysiewicz	16809	957826	025 PCT
4. POF Denise Jones	11494	966124	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Garrett Taverna	Discourtesy: Police Officer Garrett Taverna spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POF Denise Jones	Discourtesy: Police Officer Denise Jones spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Garrett Taverna	Abuse: Police Officer Garrett Taverna did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . POM Patrick Odonnell	Abuse: Police Officer Patrick O'Donnell did not obtain medical treatment for § 87(2)(b)	D . Unsubstantiated
E . POM Garrett Taverna	Discourtesy: Police Officer Garrett Taverna spoke discourteously to § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On February 18, 2019, § 87(2)(b) filed this complaint via the CCRB’s website.

On February 15, 2019, at approximately 3:29 p.m., Police Officer Garrett Taverna and Police Officer Gregory Matysiewicz—both of the 25th Precinct—arrested § 87(2)(b) at a Costco in Manhattan. Inside of the 25th Precinct holding cells during § 87(2)(b)’s arrest processing, other prisoners began smoking cigarettes provided to them by unidentified officers. § 87(2)(b) complained to PO Taverna and Police Officer Denise Jones, also of the 25th Precinct, about the cigarette smoke, but PO Taverna and PO Jones each allegedly replied, “Tough shit” (**Allegations A and B: Discourtesy, unsubstantiated**). § 87(2)(b)’s nose allegedly began to bleed as a result of the cigarette-smoke inhalation. She asked PO Taverna for medical treatment but he allegedly refused to obtain medical treatment for her (**Allegation C: Abuse of Authority, unsubstantiated**). Later, § 87(2)(b) allegedly requested medical treatment to Police Officer Patrick O’Donnell, also of the 25th Precinct, but PO O’Donnell allegedly refused to obtain medical treatment for her (**Allegation D: Abuse of Authority, unsubstantiated**). § 87(2)(b) was escorted out of the stationhouse for transport to Manhattan Central Booking (MCB) and asked PO Taverna about obtaining property vouchers. PO Taverna allegedly said, “I don’t have time to deal with your shit” (**Allegation E: Discourtesy, unsubstantiated**).

§ 87(4-b), § 87(2)(g)

The investigation obtained BWC videos (**Board Review 01–03**) from PO Taverna, PO Matysiewicz, and PO Jones, the respective summaries of which can be found in IAs #115, #116, and #117 (**Board Review 04–06**).

§ 87(2)(g)

Findings and Recommendations

Allegation A—Discourtesy: Police Officer Garrett Taverna spoke discourteously to § 87(2)(b)

Allegation B—Discourtesy: Police Officer Denise Jones spoke discourteously to § 87(2)(b)

The following facts are undisputed. On February 15, 2019, at approximately 3:29 p.m., PO Taverna and PO Matysiewicz arrested § 87(2)(b) at a Costco in Harlem for § 87(2)(b) (Board Review 07) and transported her back to the 25th Precinct stationhouse in Manhattan for arrest processing. PO Taverna and PO Jones lodged § 87(2)(b) in a row of single-occupancy holding cells while at least a few other prisoners were lodged nearby, and terminated their BWCs as they completed lodging her in the cells. There is no BWC video depicting the period of time in which § 87(2)(b) alleged the discourtesies underlying **Allegations A and B**.

§ 87(2)(b) alleged (**Board Review 07, 08**) that at least five other prisoners, as well as a few officers smoked cigarettes inside the holding cell area. Smoke quickly filled the room, which agitated § 87(2)(b)’s breathing and her contact lenses. § 87(2)(b) told PO Taverna that the smoke bothered her and that she would be unable to remain in a room with all of

that smoke. PO Taverna allegedly responded by saying, “Tough shit” and shrugging his shoulders. Shortly thereafter, § 87(2)(b) made the same complaint to PO Jones, who also allegedly said, “Tough shit.”

Based on the 25th Precinct’s Command Log and a search of other near-in-time arrests in the 25th Precinct, the investigation identified several possible civilian witnesses who were likely also inside of the holding cells during the relevant time period: § 87(2)(b)

and § 87(2)(b). The investigation made contact with § 87(2)(b) but he refused to provide a statement and withdrew from the complaint. The investigation was ultimately unable to establish contact with, or obtain a statement from, § 87(2)(b) or § 87(2)(b). See IAs for contact attempts.

PO Taverna (**Board Review 09**) acknowledged that the 25th Precinct has a common practice whereby officers purchase cigarettes for prisoners—which he dubbed, off the record, “perp cigarettes”—to use as a “tactic” to calm down agitated prisoners. Officers light the cigarette for the prisoners and allow them to smoke the cigarettes inside of the holding cells, even when other prisoners are nearby. While § 87(2)(b) was lodged in the holding cell, at least one other prisoner, approximately two cells away from her, smoked an officer-provided cigarette. There was a noticeable smell of cigarette smoke in the air.

PO Taverna, PO Jones, and PO O’Donnell (**Board Review 09–11**) all denied that PO Taverna or PO Jones ever said “Tough shit” to § 87(2)(b) or ever used profanity with her.

§ 87(2)(g)
It is therefore recommended that **Allegations A** and **B** be closed as *unsubstantiated*.

Allegation C—Abuse of Authority: Police Officer Garrett Taverna did not obtain medical treatment for § 87(2)(b)

Allegation D—Abuse of Authority: Police Officer Patrick O’Donnell did not obtain medical treatment for § 87(2)(b)

The following facts are undisputed. At some point in her arrest processing, § 87(2)(b) complained to PO Taverna about cigarette smoke in the holding cell area—which, as discussed above, was present due to other prisoners smoking officer-provided cigarettes in the holding cells. During this conversation, PO Taverna informed § 87(2)(b) that receiving medical treatment before her arrest processing concluded would significantly delay the time at which she would be released. § 87(2)(b) was concerned about missing an upcoming flight. PO Matysiewicz was not involved in § 87(2)(b)’s arrest processing. Later, PO Jones and PO O’Donnell transported § 87(2)(b) from the 25th Precinct stationhouse to MCB without incident. Aside from the routine medical screening all prisoners receive upon arrival at MCB, § 87(2)(b) never received medical treatment while in NYPD custody. No Medical Treatment of Prisoner Report was prepared in regards to § 87(2)(b)’s arrest (**Board Review 12**).

§ 87(2)(b) alleged (**Board Review 07, 08**) that her nose began to bleed due to the cigarette-smoke inhalation in the holding cells. When § 87(2)(b) told PO Taverna about her nosebleed, he told her that everyone loved their cigarettes and refused to obtain medical treatment for her. § 87(2)(b) did not withdraw her request for medical treatment when PO Taverna informed her that it would delay her arrest processing. She repeatedly insisted on receiving medical treatment. Sometime later, PO O’Donnell informed § 87(2)(b) that he would be driving her to MCB. § 87(2)(b) told PO O’Donnell about her prior requests to PO Taverna

for medical treatment. PO O'Donnell said he did not know anything about that and only knew that he was supposed to transport her to MCB. Initially, § 87(2)(b) testified that PO O'Donnell never refused to obtain medical treatment for her because she did not ask him for it. Ultimately, however, § 87(2)(b) confirmed that she did, in fact, ask PO O'Donnell for medical treatment but he refused to obtain it for her. § 87(2)(b) had an active nosebleed during transport to MCB, which was visible to PO Jones, PO O'Donnell, and the other prisoners being transported along with § 87(2)(b).

As discussed above, the investigation identified several potential civilian witnesses whose arrest processing likely overlapped with § 87(2)(b)s. However, the investigation was ultimately unable to obtain a statement from any of them.

PO Taverna, PO Jones, and PO O'Donnell (**Board Review 09–11**) consistently testified that they never observed § 87(2)(b) bleeding or otherwise injured while in NYPD custody.

PO Taverna (**Board Review 09**) testified that § 87(2)(b) verbally and explicitly withdrew her request for medical treatment once he informed her that it would delay her arrest processing. PO Taverna prophylactically brought her paper towels as well as a bottle of water. § 87(2)(b) verbally confirmed that she would be fine without medical treatment. PO Taverna denied that § 87(2)(b) ever requested medical attention from PO O'Donnell.

PO O'Donnell (**Board Review 11**) denied that § 87(2)(b) ever requested medical treatment from PO O'Donnell.

PO Jones (**Board Review 10**) denied that § 87(2)(b) requested medical attention from anyone at any point.

On page six of the 25th Precinct Command Log (**Board Review 13**), § 87(2)(b)s arrest entry specifically notes that she did not request medical treatment. § 87(2)(b)s arrest photograph (**Board Review 14**), taken at some point after she was lodged in the holding cells, does not depict any injuries or bleeding on her person or clothing.

§ 87(2)(g)
It is therefore recommended that **Allegations C and D** be closed as *unsubstantiated*.

Allegation E—Discourtesy: Police Officer Garrett Taverna spoke discourteously to § 87(2)(b)

The following facts are undisputed. PO Jones and PO O'Donnell escorted § 87(2)(b) out of the holding cell area and to a van for transport from the 25th Precinct stationhouse to MCB. PO Taverna processed § 87(2)(b)s arrest paperwork near the front desk but did not accompany her out of the stationhouse. None of the BWC videos (**Board Review 01–03**) captured any period of time after PO Taverna and PO Jones first lodged § 87(2)(b) in the cells.

§ 87(2)(b) provided generally consistent statements with the following notable inconsistencies noted below. As she was being escorted out of the stationhouse, she inquired about her property vouchers with PO Taverna. In § 87(2)(b)s website complaint (**Board Review 07**), she alleged that PO Taverna said, “I don’t have time to deal with your crap.” In her CCRB interview (**Board Review 08**), however, § 87(2)(b) alleged that PO Taverna said, “I don’t have time to deal with your shit.”

As discussed above, the investigation identified several potential civilian witnesses whose arrest processing likely overlapped with § 87(2)(b)s. However, the investigation was ultimately unable to obtain a statement from any of them.

PO Taverna (**Board Review 09**) testified that as PO Jones and PO O'Donnell escorted § 87(2)(b) out of the stationhouse for transport to MCB, she inquired about her property. PO Taverna informed § 87(2)(b) that someone would voucher it and that she could retrieve it upon her release from jail. § 87(2)(b) asked about her keys and PO Taverna provided her house keys. PO Taverna denied saying that he did not have time to “deal with your shit” to § 87(2)(b) in particular, or ever used profanity with her in general.

PO Jones and PO O'Donnell (**Board Review 10,11**) denied ever hearing PO Taverna say he did not have time to “deal with your shit” to § 87(2)(b) in particular, or ever use profanity with her in general.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *unsubstantiated*.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two other CCRB complaints and has been named as a victim in three other allegations (**Board Review 18**):
 - § 87(2)(b)
 - § 87(2)(b)
- PO Taverna has been a member of service for four years and has been named a subject in two other complaints and seven other allegations, one of which was substantiated.
 - Case #201801076 involved a substantiated allegation of discourtesy (word), an exonerated allegation of a vehicle search, an unsubstantiated allegation of force, and two unsubstantiated allegations of discourtesy (word). The Board recommended, and the NYPD imposed, Instructions.
 - § 87(2)(g)
- PO O'Donnell has been a member of service for seven years and has been named a subject in three other complaints and four other allegations; none were substantiated.
- PO Jones has been a member of service for one year. This is the first and only CCRB complaint in which she has been named a subject.
- PO Matysiewicz has been a member of service for four years. This is the first and only CCRB complaint in which he has been named a subject.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation due to § 87(2)(b)'s arrest.
- On § 87(2)(b), § 87(2)(b) filed an 11-page Notice of Claim regarding this incident. § 87(2)(b) requested relief in the total amount of \$1,500,000, including \$500,000 for "physical abuse" due to cigarette smoke inhalation and denial of medical attention while in NYPD and Department of Corrections custody; \$500,000 for "loss of work" while incarcerated; and \$500,000.00 for "Antisemitic Abuse," regarding comments the judge allegedly made at arraignment (**Board Review 19**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: #06

Investigator: _____ Investigator Conor O'Shea
Signature Print Title & Name Date

Squad Leader: _____

	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date